

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

<u>LINE 6</u>	21CV387110	Michael Meredith vs Donald Williams et al	Motion to Appoint Receiver/ Special Master Before the Court is Michael W. Meredith’s (“Plaintiff”) motion to appoint a receiver to take over all operations of Del Medio Condominiums Homeowners Association, Inc. (“DMC”) to manage the six-unit homeowners association. Plaintiff filed this motion on June 13, 2023. Don Williams and Del Medio Condominiums Homeowners Association (“Defendants”) filed an opposition on October 6 and 17, 2023. A response to the opposition was also filed by the Plaintiff on October 17, 2023. This motion was initially set in front of the Honorable Shella Deen on May 27, 2025. Since that time, there has been six continuances at the request of the party for anticipated settlement of the case: May 27, 20205, August 28, 2025, October 21, 2025, December 18, 2025, February 23, 2026, March 19, 2026, and again on May 11, 2026 via email request. The parties have informed the Court that they have reached an agreement in principle, but are still negotiating settlement terms. The parties jointly seek a continuance to June 2, 2026. The Court notes the matter is set for trial on June 22, 2026. The Court also notes that there are several discovery motions scheduled for October 6, 2026 and October 13, 2026. The case was filed on September 28, 2021 and approaching the five-year mark. The Court also notes that the parties must comply with Local Rule 8(c) regarding filing notice for a continuance and Rule 7C(5) for withdrawal. At this time, based on the age of the case, number of continuances – six -, non-compliance with Local Rules, status of the case as presented by parties and trial schedule, and the court’s overly impacted motion schedule, the request to continuance the matter is DENIED and the matter is taken OFF CALENDAR. The parties may refile the motion as needed.
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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 7</u>	24CV430011	Ernest Culp, an individual vs Audio Design SJ, Inc. et al	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.
<u>LINE 8</u>	25CV460197	KIMCO Realty Op, LLC vs Michael Hong	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.